

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
JASMINE JOHNSON FREDERIQUE,

Plaintiff,

- against -

THE CITY OF NEW YORK, MICHAEL ESPENBERG,
and "JANE" HERNANDEZ (the first name being fictitious :
as being unknown to the plaintiff), in Their Individual :
Capacities and in Their Official Capacities,

Defendants
-----X

15CV8350

COMPLAINT AND
DEMAND FOR JURY TRIAL

ECF CASE

Plaintiff, by her attorneys, Michelstein & Associates, PLLC, complaining of the
defendants, alleges:

NATURE OF THE ACTION

1. This is a civil rights action to redress the defendants' violations of the rights accorded to plaintiff Jasmine Johnson Frederique by the Civil Rights Act of 1871, 42 U.S.C. §1983, by the Constitution of the United States, including the Fourth and Fourteenth Amendments, and by the laws and the Constitution of the State of New York.

2. Plaintiff Jasmine Johnson Frederique is a citizen of the United States who was present in front of 1057 Clay Avenue, Bronx, New York on October 8, 2014, when she was arrested by New York City police officers Michael Espenberg and "Jane" Hernandez on false criminal charges of Assault in the Third Degree, Menacing in the Third Degree, and Harassment in the Second Degree, handcuffed, transported to the 44th Precinct, where she was subjected to a pat-down search and imprisoned, subsequently transported to Bronx Central Booking, where she continued to be imprisoned until her arraignment on October 9, 2014, when she was released on her own

recognizance, and prosecuted on the false criminal charges, which were dismissed on December 11, 2014.

3. The defendants' actions were unlawful, and the plaintiff brings this action seeking compensatory and punitive damages.

JURISDICTION AND VENUE

4. Jurisdiction of this Court is invoked pursuant to the Constitution of the United States, 28 U.S.C. §§1331, 1343(3) and (4), 42 U.S.C. §§1983 and 1988, in that this is an action seeking to redress the violations of the plaintiff's constitutional and civil rights, and 28 U.S.C. §1367(a), in that the state and federal claims arise from a common nucleus of operative facts such that they are so related that they form part of the same case or controversy under Article III of the United States Constitution.

5. Venue is proper in this Court pursuant to 28 U.S.C. §1391(b) and (c) in that all of the events which give rise to the claim occurred within the jurisdiction of the United States District Court for the Southern District of New York, defendants Michael Espenberg and "Jane" Hernandez can be found within the Southern District of New York, and defendant The City of New York is a municipal corporation located in the Southern District of New York which is subject to personal jurisdiction in the Southern District of New York.

PARTIES

6. Plaintiff Jasmine Johnson Frederique is a citizen of the United States who resides in the County of Bronx, City and State of New York.

7. Defendant The City of New York is, and at all times relevant herein was, a municipal corporation created under the laws of the State of New York.

8. At all times relevant herein, defendant The City of New York maintained a police department.

9. Defendant Michael Espenberg is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

10. At all times relevant herein, defendant Michael Espenberg was acting within the scope of his employment by defendant The City of New York.

11. Defendant "Jane" Hernandez is a natural person who, at all times relevant herein, was employed by defendant The City of New York as a police officers.

12. At all times relevant herein, defendant "Jane" Hernandez was acting within the scope of her employment by defendant The City of New York.

NOTICE OF CLAIM

13. On December 31, 2014, plaintiff Jasmine Johnson Frederique served on the Comptroller of the City of New York a Notice of Claim setting forth the time when, the place where and the manner in which her claims arose.

14. More than thirty days have elapsed since the plaintiff's Notice of Claim was served upon defendant The City of New York and said defendant has neglected and/or refused to make an adjustment or payment.

STATEMENT OF CLAIMS

15. Plaintiff incorporates by reference paragraphs 1 through 14 of this complaint as though the same were set forth fully herein.

16. On October 8, 2014, plaintiff Jasmine Johnson Frederique was lawfully present on the sidewalk in front of 1057 Clay Avenue, Bronx, New York.

17. On October 8, 2014, in front of 1057 Clay Avenue, Bronx, New York, defendants Michael Espenberg and “Jane” Hernandez arrested plaintiff Jasmine Johnson Frederique on false criminal charges of Assault in the Third Degree, Menacing in the Third Degree and Harassment in the Second Degree.

18. One of the individual defendants pulled plaintiff Jasmine Johnson Frederique’s hands behind her back and handcuffed her.

19. Defendants Michael Espenberg and “Jane” Hernandez did not have any warrant or other legal process directing or authorizing the seizure, search, arrest, detention, or imprisonment of plaintiff Jasmine Johnson Frederique.

20. The defendants then transported plaintiff Jasmine Johnson Frederique to the 44th Precinct, where she was imprisoned.

21. At the 44th Precinct, defendant “Jane” Hernandez took plaintiff Jasmine Johnson Frederique into a bathroom and performed a pat-down search of the plaintiff.

22. Plaintiff Jasmine Johnson Frederique was subsequently transported to Bronx Central Booking, where she continued to be imprisoned.

23. On information and belief, on October 8 or October 9, 2014, defendant Michael Espenberg falsely informed an Assistant District Attorney in the office of the Bronx County District Attorney that a male named Darrell Strickland had accused plaintiff Jasmine Johnson Frederique of causing an injury above his left eye.

24. On October 9, 2014, defendant Michael Espenberg instituted a criminal proceeding against plaintiff Jasmine Johnson Frederique, under the name Jasmine Frederique, in the Criminal Court of the City of New York, County of Bronx, under docket No. 2014BX054223, accusing the

plaintiff of the crimes of Assault in the Third Degree, Menacing in the Third Degree, and the violation of Harassment in the Second Degree.

25. On October 9, 2014, plaintiff Jasmine Johnson Frederique was arraigned before a judge of the Criminal Court of the City of New York, County of Bronx, and was released in her own recognizance.

26. On December 11, 2014, the criminal charges brought by defendant Michael Espenberg against plaintiff Jasmine Johnson Frederique were dismissed.

COUNT ONE
FALSE IMPRISONMENT UNDER 42 U.S.C. §1983

27. Plaintiff incorporates by reference paragraphs 1 through 26 of this complaint as though the same were set forth fully herein.

28. The seizure, detention, arrest, and imprisonment of plaintiff Jasmine Johnson Frederique by defendants Michael Espenberg and “Jane” Hernandez were made without any warrant or other legal process directing or authorizing her seizure, detention, arrest, or imprisonment.

29. Defendant “Jane” Hernandez acted in concert with defendant Michael Espenberg in the unconstitutional arrest of plaintiff Jasmine Johnson Frederique and/or could have intervened to stop the arrest.

30. The seizure, detention, arrest, and imprisonment of plaintiff Jasmine Johnson Frederique were made without probable cause to believe that she had committed a crime or offense.

31. The charges upon which defendants Michael Espenberg and “Jane” Hernandez arrested plaintiff Jasmine Johnson Frederique were false.

32. The charges were made by defendants Michael Espenberg and “Jane” Hernandez against plaintiff Jasmine Johnson Frederique with knowledge that they were false.

33. Plaintiff Jasmine Johnson Frederique was aware of her seizure, detention, arrest and imprisonment by defendants Michael Espenberg and “Jane” Hernandez.

34. Plaintiff Jasmine Johnson Frederique did not consent to her seizure, detention, arrest or imprisonment.

35. As a result of the foregoing, plaintiff Jasmine Johnson Frederique was deprived of her liberty, was imprisoned, and was subjected to mental and physical distress, embarrassment and humiliation.

36. The seizure, detention, arrest and imprisonment of plaintiff Jasmine Johnson Frederique deprived her of her right to be secure in her person against unreasonable searches and seizures guaranteed by the Fourth and Fourteenth Amendments of the Constitution of the United States.

37. Defendants Michael Espenberg and “Jane” Hernandez were acting under color of state law when they seized, detained, arrested and imprisoned plaintiff Jasmine Johnson Frederique.

38. Defendants Michael Espenberg and “Jane” Hernandez deprived plaintiff Jasmine Johnson Frederique of her right to be secure in her person against unreasonable searches and seizures guaranteed by the Fourth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by seizing, detaining, arresting and imprisoning plaintiff Jasmine Johnson Frederique on false criminal charges.

COUNT TWO
MALICIOUS PROSECUTION UNDER 42 U.S.C. §1983

39. Plaintiff incorporates by reference paragraphs 1 through 38 of this Complaint as though the same were set forth fully herein.

40. The criminal charges brought by defendant Michael Espenberg against plaintiff Jasmine Johnson Frederique in the Criminal Court of the City of New York, County of Bronx, were false.

41. Defendant Michael Espenberg instituted the criminal proceeding against plaintiff Jasmine Johnson Frederique with knowledge that the charges were false.

42. Defendant Michael Espenberg instituted the criminal proceeding against plaintiff Jasmine Johnson Frederique without probable cause to believe that plaintiff Jasmine Johnson Frederique had committed the crimes charged.

43. Defendant Michael Espenberg was acting with malice when he commenced the criminal proceeding against plaintiff Jasmine Johnson Frederique.

44. The criminal proceeding instituted by defendant Michael Espenberg against plaintiff Jasmine Johnson Frederique was terminated in plaintiff Jasmine Johnson Frederique's favor.

45. Defendant Michael Espenberg was acting under color of state law when he falsely informed an Assistant District Attorney in the office of the Bronx County District Attorney that a male named Darrell Strickland had accused plaintiff Jasmine Johnson Frederique of causing an injury above his left eye.

46. Defendant Michael Espenberg was acting under color of state law when he commenced a criminal proceeding against plaintiff Jasmine Johnson Frederique in the Criminal Court of the City of New York, County of Bronx.

47. Defendant Michael Espenberg deprived plaintiff Jasmine Johnson Frederique of her right to be secure in her person against unreasonable searches and seizures guaranteed by the Fourth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by commencing a criminal proceeding against plaintiff Jasmine

Johnson Frederique on false criminal charges.

COUNT THREE
MUNICIPAL LIABILITY UNDER 42 U.S.C. §1983

48. Plaintiff incorporates by reference paragraphs 1 through 47 of this Complaint as though the same were set forth fully herein.

49. The acts complained of were carried out by defendants Michael Espenberg and “Jane” Hernandez in their capacities as police officers pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

50. Defendant The City of New York implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of arresting persons on insufficient evidence in violation of the Fourth Amendment and the Equal Protection Clause of the Fourteenth Amendment of the Constitution of the United States.

51. The aforesaid customs, policies, usages, practices, procedures and rules of defendant The City of New York include, but are not limited to, the following:

- (a) Defendant The City of New York failed properly to train police officers in the standards for probable cause for the warrantless seizure and arrest of individuals consistent with the requirements of the Fourth and Fourteenth Amendments of the Constitution of the United States;
- (b) Defendant The City of New York failed properly to train police officers in the circumstances under which probable cause exists for the warrantless arrest of an individual;
- (c) Defendant The City of New York failed properly to supervise police officers during the performance of their duties, and more particularly during warrantless arrests;
- (d) Defendant The City of New York failed properly to monitor arrests made by its police officers to determine if its police officers were following proper standards for probable cause for the warrantless seizure and arrest

of individuals consistent with the requirements of the Fourth and Fourteenth Amendments of the Constitution of the United States;

- (e) Defendant The City of New York failed to discipline police officers for making warrantless arrests where probable cause for an arrest did not exist.

52. The failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

53. The arrest and imprisonment of plaintiff Jasmine Johnson Frederique on October 8, 2014 resulted from the failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers in the standards of probable cause and the requirements for warrantless arrests.

54. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to make warrantless arrests without probable cause.

55. Defendant The City of New York deprived plaintiff Jasmine Johnson Frederique of her right to be secure in her person against unreasonable searches and seizures guaranteed by the Fourth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing properly to train its police officers in the standards for making warrantless arrests.

COUNT FOUR
MUNICIPAL LIABILITY UNDER 42 U.S.C. §1983

56. Plaintiff incorporates by reference paragraphs 1 through 55 of this Complaint as though the same were set forth fully herein.

57. Upon information and belief, at all times relevant herein, defendant The City of New York was aware from Notices of Claim, lawsuits, claims filed with the New York City Police Department and the Civilian Complaint Review Board, and from the New York City Police Department's own observations, that defendants Jasmine Michael Espenberg and "Jane" Hernandez are unfit, ill tempered police officers who have the propensity to commit the acts alleged herein.

58. Upon information and belief, defendant The City of New York failed adequately to investigate prior complaints against these officers.

59. The failure of defendant The City of New York properly to take remedial action to train, retrain, supervise, monitor and discipline police officers for violations of Constitutional rights constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

60. Defendant The City of New York knew, or should have known, that as a direct result of this policy, practice and/or custom, the Constitutional rights of plaintiff Jasmine Johnson Frederique would be violated.

61. Defendant The City of New York implemented, enforced, encouraged, sanctioned and failed to rectify such policy, practice and/or custom with deliberate indifference to and disregard for the civil rights of individuals, and more particularly, the civil rights of plaintiff Jasmine Johnson Frederique.

62. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice of failing adequately to investigate complaints against police officers for violating civil rights and to take appropriate remedial action.

63. Defendant The City of New York deprived plaintiff Jasmine Johnson Frederique of her right to be secure in her person against unreasonable searches and seizures guaranteed by the

Fourth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing adequately to investigate complaints against police officers and to take appropriate remedial action to prevent further violations of the civil rights of members of the public.

COUNT FIVE
COMMON LAW ASSAULT AND BATTERY

64. Plaintiff incorporates by reference paragraphs 1 through 63 of this Complaint as though the same were set forth fully herein.

65. Defendants Michael Espenberg, “Jane” Hernandez and the City of New York committed an assault and battery on the person of plaintiff Jasmine Johnson Frederique by handcuffing her wrists.

66. As a result of the foregoing, plaintiff Jasmine Johnson Frederique was injured.

67. As a result of the foregoing, plaintiff Jasmine Johnson Frederique experienced pain, physical and emotional distress, hardship and anxiety.

COUNT SIX
ASSAULT AND BATTERY

68. Plaintiff incorporates by reference paragraphs 1 through 67 of this Complaint as though the same were set forth fully herein.

69. Defendants Michael Espenberg, “Jane” Hernandez and The City of New York committed an assault and battery on the person of plaintiff Jasmine Johnson Frederique by subjecting the plaintiff to a pat down search at the 44th Precinct.

70. As a result of the foregoing, plaintiff Jasmine Johnson Frederique experienced physical discomfort and emotional distress, hardship and anxiety.

COUNT SEVEN
COMMON LAW FALSE IMPRISONMENT

71. Plaintiff incorporates by reference paragraphs 1 through 70 of this Complaint as though the same were set forth fully herein.

72. Defendants Michael Espenberg, “Jane” Hernandez and The City of New York falsely imprisoned plaintiff Jasmine Johnson Frederique by seizing, detaining, arresting and imprisoning her on false criminal charges.

73. As a result of the foregoing, plaintiff Jasmine Johnson Frederique was deprived of her liberty, was imprisoned, and was subjected to mental and physical distress, embarrassment and humiliation.

COUNT EIGHT
COMMON LAW MALICIOUS PROSECUTION

74. Plaintiffs incorporate by reference paragraphs 1 through 73 of this Complaint as though the same were set forth fully herein.

75. Defendants Michael Espenberg and The City of New York maliciously prosecuted plaintiff Jasmine Johnson Frederique on false criminal charges of Assault in the Third Degree, Menacing in the Third Degree, and the violation of Harassment in the Second Degree.

76. As a result of the criminal proceeding instituted by defendants Michael Espenberg and The City of New York, plaintiff Jasmine Johnson Frederique was subjected to mental and physical distress and was exposed to public ridicule, scorn, humiliation and embarrassment.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests that this Court grant the following relief:

A. Award plaintiff Jasmine Johnson Frederique compensatory damages to be determined by the jury at the time of trial;

B. Award plaintiff Jasmine Johnson Frederique punitive damages to be determined by the jury at the time of trial;

C. Award the plaintiff reasonable attorneys' fees and costs, including the fees and costs of experts, incurred in prosecuting this action; and

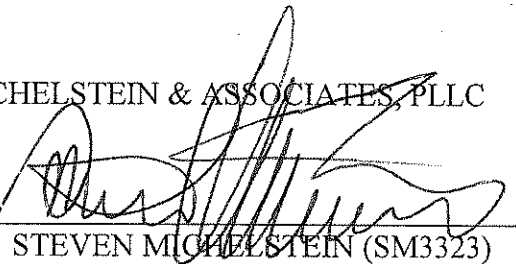
D. Grant such further relief as the Court deems necessary and proper.

JURY TRIAL DEMANDED

The plaintiff requests a jury trial on all questions of fact raised by his Complaint.

Dated: New York, New York
October 21, 2015

MICHELSTEIN & ASSOCIATES, PLLC

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